

Here, the Court finds the Motion is timely, under Code of Civil Procedure section 2031.310. Defendant has satisfied the meet and confer requirements. Given there was no responses to the request for production, a separate statement is not required. The discovery at issue pertains to Defendant's RFPD, Set One, Nos. 1 – 19 that were propounded on the plaintiff on October 27, 2023. (Declaration of Lozano at p. 10; Exhibit 1). The defendant has granted the plaintiff six separate extensions to respond to the form interrogatories, set one from November 26, 2023 to May 1, 2025. The Court notes the significant lapse in time. No responses were served to date.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

Farmers Insurance Exchange seeks sanctions and attorney's fee in the amount of \$585.00 against the plaintiff Nathaniel Villarreal based on plaintiff's failure to provide responses to RFPD. (Declaration of Lozano, p. 13). Farmers Insurance alleges that the Claimant was given almost over a year and a half of time for extensions to respond to discovery, and has still failed to respond. Defense counsel attests to spending four hours on preparing and filing this motion and estimates expending another two hours on preparing a reply brief and attending court. The hourly rate in this matter is \$250.00 and for six hours requested would amount to \$1, 500.00. Defendant's also seek a \$60.00 filing fee. However, defense seeks \$585.00 in total.

The Court notes that no reply brief was filed and there was no opposition to the motion. Given that the plaintiff has failed to provide any response to the RFPD, unopposed motion, and the Court granting the motion to compel, the Court finds that discovery sanctions in the amount of \$585.00 is reasonable.

V. CONCLUSION

Based on the foregoing, the Court orders as follows:

The motion to compel responses to RFPD, set one is GRANTED. The plaintiff is to provide verified responses to RFPD, set one, within twenty (20) days of this hearing date.

The motion for sanctions is GRANTED. The plaintiff is to pay the defendant's attorney's fee and cost in the amount of \$585.00 within twenty (20) days of this hearing date.

The Court will prepare the formal Order.

Calendar Lines # 8-9

Case Name Mariet Zovich vs Thomas Olds et al

Case No. 25CV480445

Motion to Strike (Line # 8) and Demurrer (Line # 9)

Before the court is Defendants Demurrer to portions Plaintiffs' First Amended Complaint (Line # 9) and Defendants' Motion to Strike paragraphs 64 and 82 alleged in Plaintiff's FAC, in addition to the entire prayer for relief on all causes of action (Line # 8). Pursuant to California Rule of Court 3.1308, the court issues its tentative

ruling as follows. The Background of the case is set forth in more detail in the Demurrer portion of the court's order. The Court addresses the Demurrer first and then the Motion to Strike.

DEMURRER (LINE # 9)

I. BACKGROUND

Before the court is defendants GHC of Los Gatos, LLC, dba Plum Tree Care Center ("Plum Tree") and GHC of San Jose, LLC, dba Vista Manor Nursing Center's ("Vista Manor," collectively "Moving Defendants") demurrer to portions of Plaintiff Mariet Mani Zovichi's ("Plaintiff") First Amended Complaint (FAC").

Plaintiff, individually and as successor in interest of decedent Nazik Kalantarians ("Decedent") alleges the following claims against Moving Defendants and defendants Life Generations Healthcare, LLC ("LGH"), Thomas Olds ("Olds"), Lois Mastrocola ("Mastrocola"), and Juliet Mani Runhaar: (1) elder abuse; (2) professional negligence; (3) violation of Health & Safety Code section 1430, subdivision (b); and (4) wrongful death.

According to the FAC, Decedent was a resident of Moving Defendants, which are skilled nursing facilities licensed under Health and Safety Code sections 1250, subdivision (c). (FAC, ¶¶ 4, 11). Moving Defendants are alter egos of LGH, with Olds and Mastrocola as LGH's officers. (*Id.* at ¶ 47). LGH controls daily operations of Plum Tree and Vista Manor, including their staffing policies. (*Id.* at ¶ 48).

During her stay at Vista Manor, Decedent sustained injuries from falls despite having a documented high fall risk status and needing assistance for transfers and mobility. (FAC, ¶ 20). Decedent's falls were because Vista Manor failed to: (1) respond to call lights in a timely manner; (2) provide the requisite assistance for transfers; and (3) maintain adequate staffing to monitor high risk residents like Decedent. (*Ibid.*). Vista Manor also engaged in physical abuse and deprived Decedent of adequate nutrition and hydration. (*Id.* at ¶¶ 21-22). On December 11, 2024, Decedent suffered a seizure and was transferred to Good Samaritan Hospital, where a CT scan revealed intracranial hemorrhages caused by or related to Decedent's falls at Vista Manor. (*Id.* at ¶¶ 25-26). Vista Manor failed to document and report these falls. (*Id.* at ¶ 26).

After hospitalization, Decedent was admitted to Plum Tree on December 17, 2024, where she had documented signs of dehydration and poor or unstable blood pressure from December 20, 2024 through January 3, 2025. (*Id.* at ¶¶ 27-31). Plum Tree failed to keep Decedent's room warm and provide extra blankets despite Decedent's repeated complaints. (*Id.* at ¶ 32). Plum Tree also failed to follow physician orders regarding Decedent's diet, contributing to her development of aspiration pneumonia. (*Id.* at ¶¶ 33-34). On February 5, 2025, Decedent's daughter visited Decedent and observed she was extremely ill, but Plum Tree staff declined to provide immediate assistance. (*Id.* at ¶ 36). Decedent was eventually transferred to the emergency room, where she never recovered, and ultimately passed on February 15, 2025. (*Id.* at ¶¶ 36-37).

Following Decedent's death, Plaintiff could not obtain records from Plum Tree to verify what occurred, and Plum Tree only provided incomplete records after Plaintiff lodged a complaint with the California Department of Public Health ("CDPH"). (FAC, ¶ 38). CDPH conducted an independent investigation that determined Plum Tree failed to prepare a care plan, assess Decedent properly, and document Decedent's conditions and needs accurately. (*Ibid.*).

On March 6, 2026, Defendants filed the demurrer and motion to strike presently before the court. Plaintiff filed timely written oppositions.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

In ruling on a demurrer, the court treats the motion “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318]). “The reviewing court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. The court does not, however, assume the truth of contentions, deductions or conclusions of law.” (*Gregory v. Albertson’s, Inc.* (2002) 104 Cal.App.4th 845, 850). However, it has long been held that on demurrer, leave to amend should be granted where ““there is a reasonable possibility that the defect can be cured by amendment.”” (*Loeffler v. Target Corp.* (2014) 58 Cal.4th 1081, 1100 (*Loeffler*); see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687).

On a demurrer or motion to strike, the court considers only the pleading under attack, any attached exhibits, and any facts or documents of which the court may take judicial notice. (See *Barnett v. Fireman’s Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505). Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94 (*Frantz*)).

III. ANALYSIS

Moving Defendants demur to the first cause of action for elder abuse, third cause of action for violation of Health & Safety Code section 1430, subdivision (b), and fourth cause of action for wrongful death on the ground that each fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e)). Moving Defendants also demur to the fourth cause of action for wrongful death on the ground that the claim is uncertain.⁵ (Code Civ. Proc., § 430.10, subd. (f)).

A. FIRST CAUSE OF ACTION: ELDER ABUSE

In demurring to the first cause of action, Moving Defendants contend that the FAC does not allege with particularity: (1) Moving Defendants’ acts of egregious abuse or neglect; and (2) corporate authorization or ratification of any wrongful conduct related to Decedent’s care.

1. General Principles of Elder Abused Based on Neglect

The Elder Abuse and Dependent Adult Civil Protection Act as codified by Welfare and Institutions Code section 15600 et seq. (the “Elder Abuse Act”) protects “a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect.” (*Delaney v. Baker* (1999) 20 Cal.4th 23, 33 (*Delaney*)). As a statutory cause of action, the FAC must plead the first cause of action for elder abuse with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 (*Covenant Care*)).

⁵ Moving Defendants’ notice of demurrer asserts that the first—rather than the fourth—cause of action is subject to a demurrer for uncertainty. Considering the arguments within the memorandum of points and authorities, the court understands the demurrer for uncertainty is directed to the fourth cause of action.

The Elder Abuse Act defines neglect as “[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subd. (a)(1); see *Covenant Care, supra*, 32 Cal.4th at p. 783 [statutory definition speaks to failure to provide medical care]). Negligent acts include the failure to: (1) assist in personal hygiene and provide food, clothing, or shelter; (2) provide medical care for mental or physical needs; (3) protect from health and safety hazards; and (4) prevent malnutrition or dehydration. (Welf & Inst. Code, § 15610.57, subd. (b)).

To recover the enhanced remedies available under the Elder Abuse Act, the claim must also allege recklessness, fraud, malice, or oppression. (See *Covenant Care, Inc., supra*, 32 Cal.4th at p. 783 [distinguishing elder abuse claim from professional negligence]). “Oppression, fraud, and malice involve intentional, willful, or conscious wrongdoing of a despicable or injurious nature.” (*Carter v. Prime Healthcare Paradise Valley LLC*, 198 Cal.App.4th 396, 405 (*Carter*), quotations omitted). Recklessness requires a deliberate disregard of a high degree of probability that an injury will occur. (*Ibid.*). The enhanced remedies for elder abuse are only available for “acts of egregious abuse”, and an allegation of authorization or ratification on a managing agent’s part must be alleged to recover damages against corporate defendants. (*Ibid.*; see Welf. & Inst. Code, § 15657, subd. (c); Civ. Code, § 3294, subd. (b)).

2. Sufficiency of the Allegations

Moving Defendants first argue that the elder abuse claim is deficient because the FAC fails to allege (1) any act of egregious abuse with the requisite particularity; and (2) Defendants acted with knowledge that injury was substantially certain to occur (*i.e.*, oppression, fraud, or malice) or with conscious disregard of the high probability of injury (*i.e.* recklessness). Plaintiff disputes these characterizations.

The court first clarifies that there is no requirement that the elder abuse claims be pled with specificity; it is sufficient to allege the claim with particularity such that Moving Defendants are made aware of the “nature, source[,], and extent” of the claim. (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245; see *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261 [distinguishing “reasonable particularity” as a “more lenient pleading standard”]). Thus, Plaintiff need not plead “facts which ‘show how, when, where, to whom, and by what means’” an act occurred as in a fraud claim which requires pleading with such specificity. (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645; see *Burks v. Poppy Construction Co.* (1962) 57 Cal. 2d 463, 474 [“less particularity is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff.”])

The FAC alleges that Vista Manor failed to prevent falls and provide adequate fall prevention during Decedent’s admission from November 5, 2024 through December 11, 2024, resulting in a fall on December 10, 2024 that triggered a seizure and intracranial hemorrhage the next day. (FAC, ¶¶ 20, 24-26). The FAC further alleges that Vista Manor failed to (1) implement the fall prevention measures required by Decedent’s care plan (*e.g.*, provide at least one person for assistance in transfers and mobility); (2) provide adequate supervision; and (3) respond to her needs in a timely manner. (*Id.* at ¶¶ 20, 24). Plaintiff further attributes Decedent’s fall and consequent injury to Vista Manor’s failure to provide adequate staffing. (*Id.* at ¶ 26).

The FAC next alleges that on December 31, 2024, Plum Tree failed to ensure Decedent had adequate oral fluid intake and failed to implement effective interventions to address Decedent’s hydration needs despite knowing Decedent had dehydration issues after admission. (FAC, ¶¶ 30, 33). Furthermore, on February 5, 2025, Decedent was feverish, incoherent, and extremely ill, but despite repeated requests for immediate assistance by Decedent’s daughter, Plum Tree staff told the daughter that they had “other pressing matters to attend to.” (*Id.* at ¶ 36). Decedent only received medical attention after the daughter caused a scene, prompting a staff member to notify a doctor who advised immediate transfer to the emergency room. (*Ibid.*).

The foregoing allegations are sufficient to allege at least one specific incident where Vista Manor and Plum Tree denied medical care necessary to meet Decedent's physical and hydration needs, exacerbating Decedent's condition.

The FAC also adequately pleads that Moving Defendants acted recklessly as it alleges that Vista Manor and Plum Tree continued to maintain insufficient staff despite receiving multiple reports on the difficulties of providing adequate care without sufficient staff. (FAC, ¶ 64(c)). Specifically, the FAC alleges that non-moving defendants Olds and Mastrocola were members of Vista Manor and Plum Tree's governing body and were responsible for approving staff budget and establishing staffing policies. (*Id.* at ¶¶ 50-51, 54-55). Both received deficiency reports by CDPH⁶ documenting that understaffing caused harm to residents, and facility staff reported they could not respond to call lights, assist with meals, or monitor high-risk residents due to inadequate staffing. (*Id.* at ¶ 64(b)). Notwithstanding these reports, Vista Manor and Plum Tree continued to maintain insufficient staff to maximize profit at the expense of resident care and safety. (*Id.* at ¶¶ 47, 64(c)).

The factual allegations are analogous to *Fenimore v. Regents of University of California* (2016) 245 Cal.App.4th 1339 (*Fenimore*), where the court reversed a ruling sustaining a demurer to an elder abuse cause of action. There, the *Fenimore* court noted,

"The FAC supplied allegations that may show recklessness. It alleged the Hospital had a pattern and knowing practice of improperly understaffing to cut costs, and had the Hospital been staffed sufficiently, George would have been properly supervised and would not have suffered injury." (*Id.* at p. 1349). These allegations, the *Fenimore* court noted, were distinguishable from the allegations in *Worsham v. O'Connor Hospital* (2014) 226 Cal.App.4th 331 (*Worsham*), which failed to support the allegation of reckless understaffing with particular facts. (*Fenimore, supra*, 245 Cal.App.4th at p. 1350; see *Worsham, supra*, 226 Cal.App.4th at p. 338 ["Absent specific facts indicating at least recklessness, any failure to provide adequate supervision would constitute professional negligence but not elder abuse"]).

As noted above, the FAC alleges that Moving Defendants deliberately maintained insufficient staff despite receiving reports and regulatory deficiency notices. Thus, just as in *Fenimore*, Plaintiff has alleged at least one viable theory of elder abuse based on recklessness. (*Fenimore, supra*, 245 Cal.App.4th at p. 1351 ["the court should not sustain a demurrer when the plaintiff has stated a cause of action under *any* possible legal theory, and it may not sustain a demurrer to only a part of a cause of action"]). The court therefore need not address Moving Defendants' assertions that the FAC insufficiently alleges malicious, oppressive, or fraudulent conduct for purposes of this demurrer.

3. *Authorization of Corporate Defendants*

Plaintiff's FAC fails to allege the involvement of an officer, director, or managing agent of Moving Defendants, which would warrant a claim for punitive damages. (See *Carter, supra*, 198 Cal.App.4th at p. 405). To the extent that Moving Defendants seek to challenge the punitive damages allegations, the proper procedural vehicle is a motion to strike, not demurrer. (See *Caliber Bodyworks, Inc. v. Super. Ct.* (2005) 134 Cal.App.4th 365, 385 ["The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a

⁶ Defendants contend for the first time in their reply that Plaintiff's allegations concerning CDPH investigations should be stricken under Health & Safety Code, section 1280, subdivision (f), which provides: "In no event shall the act of providing a plan of correction, the content of the plan of correction, or the execution of a plan of correction, be used in any legal action or administrative proceeding as an admission within the meaning of Sections 1220 to 1227, inclusive, of the Evidence Code against the health facility, its licensee, or its personnel." The CDPH documentation is not being offered as an admission, but as evidence of prior knowledge, which the statute does not expressly preclude.

motion to strike.”)). In any event, Plaintiff correctly points out the FAC provides more than boilerplate allegations of authorization.

The FAC alleges that Olds is the CEO, founder, and majority owner of LGH, with ultimate authority over business decisions concerning Plum Tree and Vista Manor—including staffing policies. (FAC, ¶ 50). Olds received reports regarding the deficiencies at Plum Tree and Vista Manor, controlled the resources needed to meet Decedent’s basic needs, and nonetheless made the deliberate decision to continue understaffing practices. (*Id.* at ¶¶ 51-52). Mastrocola is the CFO and founder of LGH, with responsibility over the financial management of Plum Tree and Vista Manor, including the staffing budgets that determined the availability of nurses and aides for residents. (*Id.* at ¶ 54). Despite receiving reports of deficiencies and incidents affecting residents, Mastrocola deliberately maintained inadequate staffing levels. (*Id.* at ¶ 56). Finally, Plum Tree and Vista Manor, as alter egos of LGH, have no independent management or decision-making authority because LGH has full, complete, and exclusive authority over all business decisions and 100% ownership of both facilities. (*Id.* at ¶¶ 45(b)-(c)).

These allegations of reckless conduct are sufficient to allege ratification or authorization at the pleadings stage. (*Covenant Care, supra*, 32 Cal.4th at p. 789; see Civ. Code, § 3294, subd. (b) [“With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”]; see *White v. Ultramar* (1999) 21 Cal.4th 563, 573 [“The managing agent must be someone who exercises substantial discretionary authority over decisions that ultimately determine corporate policy.”]; cf. *Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1141 [requiring clear and convincing evidence of managing agent status upon review of punitive damages award in a *motion for new trial*]).

Moving Defendants’ demurrer to the first cause of action for elder abuse is OVERRULED.

B. THIRD CAUSE OF ACTION: VIOLATION OF HEALTH AND SAFETY CODE SECTION 1430 SUBDIVISION (B)

Moving Defendants argue that the third cause of action simply asserts statutory violations without providing factual allegations in support. Specifically, Moving Defendants assert the claim is defective because it only alleges statutory and regulatory provisions under Health and Safety Code section 1430 and Section 72527 of Title 22 of the California Code of Regulations, otherwise known as the Patient’s Bill of Rights.

While the FAC does identify various violations of the Patient’s Bill of Rights, the FAC also realleges the specific violation already set forth in preceding paragraphs. For example, paragraph 78(b) of the FAC alleges: “The right to be treated with consideration, respect and full recognition of dignity and individuality. [22 Cal. Code. of Regulations §72527(a)(12).] VIOLATION: Decedent was subjected to discriminatory remarks about her national origin and physical appearance; was left cold without blankets despite repeated complaints; and was told by staff that they had “more pressing matters” when her daughter sought emergency assistance on February 5, 2025.” The violation is also alleged in paragraphs 21, 32, and 36 of the FAC, which are all incorporated by reference in the third cause of action. (FAC, ¶ 76).

These allegations are sufficient, accordingly, Moving Defendants’ demurrer to the third cause of action is OVERRULED.

C. FOURTH CAUSE OF ACTION: WRONGFUL DEATH

In demurring to the fourth cause of action for wrongful death on the ground of failure to allege sufficient facts, Moving Defendants contend that the FAC fails to allege a causal link between their misconduct and Decedent’s causes of death: pulmonary edema and hypertension. The Court finds this argument is apt.

The FAC alleges that the “intracranial hemorrhage, chronic dehydration, malnutrition, and aspiration pneumonia. . . directly caused and/or substantially contributed to Decedent’s death.” (FAC, ¶ 84). Decedent’s death certificate is appended to the FAC as Exhibit A and identifies her cause of death as pulmonary edema and hypertension. (*Id.*, Ex. A).

Contrary to Plaintiff’s assertion, the death certificate is not extrinsic evidence as the court may consider exhibits attached to complaint in ruling on a demurrer, and where facts in the exhibit contradict the allegation of the pleadings, the facts in the exhibit control. (See *Frantz, supra*, 189 Cal.App.3d at p. 94; see also *Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 568). Thus, Plaintiff’s theories of Decedent’s cause of death (*e.g.*, intracranial hemorrhage and aspiration pneumonia) are insufficient to survive demurrer because the death certificate specifically identifies the cause of death as pulmonary edema and hypertension. Moreover, Plaintiff insufficiently pleads a connection between the alleged abuse and Decedent’s cause of death. For example, Decedent’s aspiration pneumonia was allegedly “more likely than not the cause of her death”, but the FAC fails to explain how the development of aspiration pneumonia on an unspecified date caused Decedent’s eventual death from pulmonary edema and hypertension on February 15, 2025. (FAC, ¶ 33). While Plaintiff asserts that pulmonary edema may be a complication of aspiration pneumonia and fluid imbalance, this is not alleged within the complaint. Under these circumstances, the FAC does not sufficiently plead a causal connection between Moving Defendants’ alleged conduct and Decedent’s death.

Moving Defendants’ demurrer to the fourth cause of action for wrongful death is SUSTAINED with 20 days’ leave to amend. Given this ruling, the court declines to reach the merits of Defendants’ demurrer on the ground of uncertainty.

IV. CONCLUSION

Based on the foregoing, Defendants’ demurrer to the first cause of action for elder abuse and third cause of action for violation of Health and Safety Code section 1430, subdivision (b) on the ground of failure to state sufficient facts is OVERRULED.

Defendants’ demurrer to the fourth cause of action for wrongful death on the ground of failure to state sufficient facts is SUSTAINED with 20 days’ leave to amend.

The Court will prepare the formal Order.

MOTION TO STRIKE (LINE # 8)

I. BACKGROUND

Before the court is Moving Defendants’ motion to strike paragraphs 64 and 82 of the FAC, in addition to the entire prayer for relief on all causes of action.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section § 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court of rule or an order of the court. In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255]).

III. ANALYSIS

Notwithstanding the multiple allegations Moving Defendants identify as subject to the motion to strike, Moving Defendants only substantively argue that Plaintiff's request for punitive damages under Civil Code section 3294 and attorneys' fees under Welfare and Institutions Code section 15657 must be stricken. These remedies are sought for the first cause of action, which alleges violations of the Elder Abuse Act, and Defendants' motion to strike largely reiterates the arguments raised in their demurrer—*i.e.* the FAC lacks factual details on recklessness, oppression, fraud, or malice, in addition to authorization or ratification by a managing agent. As the court has found that Plaintiff sufficiently pled a cause of action for elder abuse in its concurrent ruling on the demurrer, and the elder abuse claim provides punitive damages and attorneys' fees as a remedy, the motion to strike must be denied.

Moving Defendants make no argument in support of striking the remaining allegations (e.g., paragraph 64 alleging Moving Defendants' reckless acts, paragraph 82 alleging entitlement to remedies under Health and Safety Code section 1430, subdivision (b)) and therefore waives the argument. (See *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 ["The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived."]).

IV. CONCLUSION

Moving Defendants' motion to strike is DENIED in its entirety. The Court will prepare the formal Order.